

M/s Tirupati Containers Pvt. Ltd. v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 6 April 2023 · Writ-C No. 35355 of 2014 · **Writ dismissed as infructuous on petitioner's statement**

HEADNOTE

A writ seeking quashing of a demand for additional security under clause 4.20 of the U.P. Electricity Supply Code, 2005, was first met with a without-prejudice interim restraint and tagging with connected petitions, and was later dismissed as infructuous on the petitioner's statement, without deciding the demand.

FACTUAL SUMMARY

M/s Tirupati Containers Pvt. Ltd. challenged a 26 May 2014 demand notice for additional security issued by the distribution licensee under paragraph 4.20 of the U.P. Electricity Supply Code, 2005. Counsel relied on similar writs, including an interim order dated 7 October 2009 in Supreme Ceramics Limited, and sought like protection. On 11 July 2014 the High Court tagged the petition with connected matters and, without prejudice, restrained the respondents from demanding additional security. In 2023 counsel stated the petition had become infructuous.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.20

additional security

HOLDING

The writ petition challenging a demand notice for additional security under clause 4.20 of the U.P. Electricity Supply Code, 2005, was dismissed as infructuous on the statement of counsel for the petitioners, without adjudication of the demand. ¶ 3

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE ADDITIONAL-SECURITY DEMAND UNDER CLAUSE 4.20 OF THE SUPPLY CODE WAS LAWFUL

The 11.7.2014 restraint was without prejudice to the parties' rights; the writ was later dismissed as infructuous without deciding the demand. ¶ 1,3

TABLE OF AUTHORITIES

AUTHORITY	PROPOSITION	HOW TREATED	CITED BY	TREATMENT
M/s Supreme Ceramics Limited v. Paschimanchal Vidyut Vitran Nigam Ltd. Writ Petition No. 51844 of 2009, order dated 7.10.2009			1	Referred